

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 29957/10
OBČANSKÉ SDRUŽENÍ TWRA - THIRD WORLD RELIEF AGENCY
and Jiří RUBEK
against the Czech Republic

The European Court of Human Rights (Fifth Section), sitting on 4 June 2013 as a Committee composed of:

Angelika Nußberger, *President,*
André Potocki,
Aleš Pejchal, *judges,*
and Stephen Phillips, *Deputy Section Registrar,*

Having regard to the above application lodged on 7 May 2010,

Having regard to the declaration submitted by the respondent Government on 9 January 2013 requesting the Court to strike the application out of the list of cases and the applicants' reply to that declaration,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The first applicant, Občanské sdružení TWRA - Third World Relief Agency, is a non-governmental organization registered in 2006 and based in Prague and the second applicant, Mr Jiří Rubek, is a Czech national, who was born in 1950 and lives in Říčany.

The Czech Government ("the Government") were represented by their Agent, Mr V.A. Schorm, of the Ministry of Justice.

The applicants complained under Article 6 of the Convention about the length of the civil proceedings to which they had been parties. They further

complained under Article 11 of the Convention that they had been denied their right to association for more than ten years.

THE LAW

The applicants complained about the length of proceedings. They relied on Article 6 of the Convention.

After the failure of attempts to reach a friendly settlement, by a letter of 9 January 2013 the Government informed the Court that they proposed to make a unilateral declaration with a view to resolving the issue raised by this part of the application. They further requested the Court to strike out the application in accordance with Article 37 of the Convention.

The declaration provided as follows:

> "The Government hereby acknowledge that in case no. 29957/10, there has been a violation of Article 6 § 1 of the Convention on account of an excessive length of judicial proceedings to which the applicants were a party at national level.
>
> The Government offer to pay the applicants jointly a sum of EUR 3,400 (three thousand four hundred euros). The Government note in this context that according to Section 3(4)(d) and Section 18(2)(d) of Act no. 586/1992, on income tax, payment of just satisfaction awarded by the Court or stemming from a friendly settlement of the case before the Court is not subject to personal income tax, respectively to corporate income tax.
>
> This sum will be payable within three months from the date of notification of the decision taken by the Court pursuant to Article 37 § 1 of the Convention. In the event of failure to pay this sum within the said three-month period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default periods plus three percentage points."

By a letter of 13 February 2013, the applicants indicated that they were not satisfied with the terms of the unilateral declaration.

The Court recalls that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

It also recalls that in certain circumstances, it may strike out an application under Article 37 § 1(c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the case to be continued.

To this end, the Court will examine carefully the declaration in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (*Tahsin Acar v. Turkey*, [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI); *WAZA Spółka z o.o. v. Poland* (dec.) no. 11602/02, 26 June 2007; and *Sulwińska v. Poland* (dec.) no. 28953/03).

The Court has established in a number of cases, including those brought against the Czech Republic, its practice concerning complaints about the violation of one's right to a hearing within a reasonable time (see, for example, *Frydlender v. France* [GC], no. 30979/96, § 43, ECHR 2000-VII; *Cocchiarella v. Italy* [GC], no. 64886/01, §§ 69-98, ECHR 2006-V; *Majewski v. Poland*, no. 52690/99, 11 October 2005; and *Wende and Kukówka v. Poland*, no. 56026/00, 10 May 2007).

Having regard to the nature of the admissions contained in the Government's declaration, as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1(c)).

Moreover, in light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declaration, the application could be restored to the list in accordance with Article 37 § 2 of the Convention (*Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

Relying on Article 11 the applicants also complained that they had been denied their right to association for more than ten years.

Having regard to all the evidence in its possession, and in so far as it has jurisdiction to examine the allegations, the Court has not found any appearance of a breach of the rights and freedoms guaranteed by the Convention or its Protocols.

It follows that this part of the application is manifestly ill-founded and must be rejected in accordance with Article 35 §§ 3 and 4 of the Convention.

For these reasons, the Court unanimously

Takes note of the terms of the respondent Government's declaration under Article 6 of the Convention and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike part of the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention;

Declares the remainder of the application inadmissible.

Stephen Phillips
Deputy Registrar

Angelika Nußberger
President